

Instructions for Form 9465

(Rev. July 2024)



Department of the Treasury
Internal Revenue Service

Installment Agreement Request (For use with Form 9465 (Rev. September 2020))

Section references are to the Internal Revenue Code unless otherwise noted.

Future Developments

For the latest developments related to Form 9465 and its instructions, such as legislation enacted after they were published, go to [IRS.gov/Form9465](https://www.irs.gov/Form9465).

What's New

Reduction in user fees for certain installment agreements. New installment agreement fees are effective July 1, 2024. See [Installment agreement user fees](#), later, for more information.

Reminders

User fees for certain reinstated or restructured installment agreements. The user fee is \$10 for installment agreements reinstated or restructured through an online payment agreement (OPA). You must have established the reinstatement or restructuring of the installment agreement through an OPA to qualify for the reduced user fee. Low-income taxpayers may be reimbursed this fee under certain conditions. See [Requests to modify or terminate an installment agreement](#), later.

Apply online at reduced fee. If the total amount you owe isn't more than \$50,000 (including any amounts you owe from prior years), you may not need to file Form 9465; you can request an installment agreement online for a reduced fee. For more information, see [Applying online for an installment agreement and other payment plans](#), later.

Waiver and reimbursement of user fees for low-income taxpayers. For installment agreements entered into by taxpayers with adjusted gross income, for the most recent tax year available, at or below 250% of the federal poverty guidelines, the IRS will waive or reimburse user fees if certain conditions are met. For details, see [Low-income taxpayer user fee waivers and reimbursements](#), later.

Financial statement may be required. See [Line 11b](#), later, for more information about when a Form 433-F is required. A Form 433-F, Collection Information Statement, may be downloaded at [IRS.gov/Forms-Instructions](https://www.irs.gov/Forms-Instructions).

General Instructions

Purpose of Form

Use Form 9465 to request a monthly installment agreement (payment plan) if you can't pay the full amount you owe shown on your tax return (or on a notice we sent you). Most installment agreements meet our streamlined installment agreement criteria. See [Streamlined](#)

[installment agreement](#), later, for more information. In certain circumstances, you can have longer to pay or you can establish an agreement for an amount that is less than the amount of tax you owe.

However, before requesting a payment plan, you should consider other alternatives, such as getting a bank loan or using available credit, which may be less costly. If you have any questions about this request, call 800-829-1040.

Who should use this form? Use Form 9465 if you're an individual:

- Who owes income tax on Form 1040 or 1040-SR;
- Who is or may be responsible for a trust fund recovery penalty;
- Who owes employment taxes (for example, as reported on Forms 941, 943, or 940) related to a sole proprietor business that is no longer in operation; or
- Who owes an individual shared responsibility payment under the Affordable Care Act (this payment isn't assessed for months beginning after December 31, 2018). See section 5000A.

Who should not use this form? Don't use Form 9465 if:

- You can pay the full amount you owe within 180 days (if you plan to pay the taxes, interest, and penalties due in full within 180 days, you can save the cost of the user fee—see [Can you pay in full within 180 days?](#) next);
- You want to request a payment plan online, including an installment agreement (see [Applying online for an installment agreement and other payment plans](#), later); or
- Your business is still operating and owes employment or unemployment taxes. Instead, call the telephone number on your most recent notice to request an installment agreement.

Can you pay in full within 180 days? If you can pay the full amount you owe within 180 days, you can avoid paying the fee to set up an installment agreement by calling the IRS at 800-829-1040. If you owe \$100,000 or less, you can apply for a short-term payment plan, if you can pay in full within 180 days, by using the OPA application at [IRS.gov/OPA](https://www.irs.gov/OPA).

Applying online for an installment agreement and other payment plans. If your balance due isn't more than \$50,000, you can apply online for a payment plan instead of filing Form 9465. To do that, go to [IRS.gov/OPA](https://www.irs.gov/OPA). If you establish your installment agreement using the OPA application, the user fee that you pay will be lower than it would be otherwise.

Guaranteed installment agreement. You're eligible for a guaranteed installment agreement if the tax you owe isn't more than \$10,000 and:

- During the past 5 tax years, you (and your spouse if filing a joint return) have timely filed all income tax returns

and paid any income tax due, and haven't entered into an installment agreement for the payment of income tax;

- You agree to pay the full amount you owe within 3 years and to comply with the tax laws while the agreement is in effect; and
- You're financially unable to pay the liability in full when due.

Streamlined installment agreement. Generally, you're eligible for a streamlined installment agreement if:

- Your assessed tax liability is \$25,000 or less (for an individual, in-business with income tax only, or an out-of-business taxpayer); or
- Your assessed tax liability is \$25,001 to \$50,000 (for an individual or an out-of-business sole proprietorship) and you agree to pay by direct debit or payroll deduction.

Your proposed payment amount must pay in full the assessed tax liability within 72 months or satisfy the liability in full by the Collection Statute Expiration Date (CSED), whichever is less. The CSED is normally 10 years from the date of the assessment. However, it may be suspended or extended for various reasons. For more information on the CSED, go to [IRS.gov/filing/time-irs-can-collect-tax](https://www.irs.gov/filing/time-irs-can-collect-tax).

Generally, a streamlined installment agreement does not require a financial statement or a Notice of Federal Tax Lien to be filed.

Partial payment installment agreement (PPIA). An installment agreement that will not pay in full the entire balance before the CSED is called a PPIA. You will be required to complete a financial statement and provide supporting financial information for a PPIA. If a PPIA is approved, your agreement is subject to future reviews to confirm if your financial situation has changed. You may be required to provide a new financial statement and supporting financial information during this review. The financial information you provide may result in a reduction, an increase, or no change to your monthly installment agreement amount.

More on types of installment agreements and payment options. For more information about types of installment agreements, see Tax Topic No. 202, Tax Payment Options, at [IRS.gov/TaxTopics/TC202](https://www.irs.gov/TaxTopics/TC202). Also go to [IRS.gov/Payments](https://www.irs.gov/Payments) for more information on payment options.

Bankruptcy or offer in compromise. If you're in bankruptcy or have a pending or accepted offer in compromise, don't file this form. Instead, call 800-829-1040 to get the number of your local IRS Insolvency function for bankruptcy or to get the number of the office to contact regarding your offer in compromise.

How the Installment Agreement Works

Requesting an installment agreement. We will usually let you know within 30 days after we receive your request whether it is approved or denied. However, if this request is for tax due on a return you filed after March 31, it may take us longer than 30 days to reply. If we approve your request, we will send you a notice detailing the terms of your agreement and requesting a user fee.

Note. When you request an installment agreement, with certain exceptions the IRS is generally prohibited from levying and the IRS's time to collect is suspended or prolonged while the installment agreement is pending. See [IRS.gov/filing/time-irs-can-collect-tax](https://www.irs.gov/filing/time-irs-can-collect-tax) and Tax Topic No. 202, Tax Payment Options, at [IRS.gov/TaxTopics/TC202](https://www.irs.gov/TaxTopics/TC202) for additional information.

After approving your request. Each month, we will send you a notice showing the remaining amount you owe, and the due date and amount of your next payment. But if you choose to have your payments automatically withdrawn from your checking account (also known as a direct debit), you won't receive a notice. Your checking account statement is your record of payment. We will send you an annual statement showing the amount you owed at the beginning of the year, all payments made during the year, and the amount you owe at the end of the year.

By approving your request, we agree to let you pay the tax you owe in monthly installments instead of immediately paying the amount in full. In return, you agree to make your monthly payments on time. You also agree to meet all your future tax obligations. This means that you must have enough withholding or estimated tax payments so that your tax obligation for future years is paid in full when you timely file your return. Your request for an installment agreement will be denied if any required tax returns haven't been filed. Any refund will be applied against the amount you owe even if you have an installment agreement. If your refund is applied to your balance, you're still required to make your regular monthly installment payment.

Installment agreement user fees. We charge a user fee to set up an installment agreement. The amount of the user fee can vary depending on whether you use the online payment application and how you propose to make your monthly payments. For details, see the table below with the fees in effect as of July 1, 2024.

Payment Method	Applicable Fee	
	Using the online payment application	Not using the online payment application
Direct debit	\$22*	\$107*
Check, money order, credit card, or debit card	\$69*	\$178*
* Low-income taxpayers should see <i>Low-income taxpayer reduced installment agreement user fee</i> and <i>Low-income taxpayer user fee waivers and reimbursements</i> , later.		

Note. If you request a payroll deduction agreement using Form 2159, Payroll Deduction Agreement, your user fee will be \$178 beginning July 1, 2024. If you're a low-income taxpayer, see *Low-income taxpayer reduced installment agreement user fee* next for more details.

Low-income taxpayer reduced installment agreement user fee. If you establish an installment agreement that is not paid by direct debit, you may qualify to pay a reduced fee of \$43 or for a reimbursement of your fee if you are a low-income taxpayer, as defined below. See *Low-income*

taxpayer user fee waivers and reimbursements next. The IRS will let you know whether you qualify for the reduced fee. If the IRS doesn't say you qualify for the reduced fee, you can request that the IRS consider you for "low-income" status using Form 13844, Application For Reduced User Fee For Installment Agreements.

Low-income taxpayer user fee waivers and reimbursements. For installment agreements entered into on or after April 10, 2018, by low-income taxpayers, defined next, the IRS will waive or reimburse the user fees if certain conditions are met. If you're a low-income taxpayer and you agree to make electronic payments through a debit instrument by entering into a direct debit installment agreement (DDIA), the IRS will waive the user fees for the installment agreement. See [Lines 13a, 13b, and 13c](#), later, for further details. If you're a low-income taxpayer and you're unable to make electronic payments through a debit instrument by entering into a DDIA, the IRS will reimburse the reduced \$43 user fee that you paid for the installment agreement upon completion of the installment agreement. See [Line 13c](#), later, for more details.

Definition of low-income taxpayer. A low-income taxpayer is a taxpayer with adjusted gross income, for the most recent tax year available, at or below 250% of the federal poverty guidelines. For more information on how to determine if your adjusted gross income is at or below 250% of the federal poverty guidelines, see the instructions for Form 13844.



The only payment option that will qualify the low-income taxpayer for a waiver of the installment agreement user fee is their agreement to make electronic payments through a debit instrument by entering into a DDIA. See [Lines 13a, 13b, and 13c](#), later, for more details.

Other costs. You will be charged interest and a late payment penalty on any tax not paid by its due date, even if your request to pay in installments is granted. Interest and any applicable penalties will be charged until the balance is paid in full. But see Topic 653, IRS Notices and Bills, Penalties, and Interest Charges, at [IRS.gov/TaxTopics/TC653](#) for additional information. To limit interest and penalty charges, file your return on time and pay as much of the tax as possible with your return or notice. All payments received under the installment agreement will be applied to your account in the best interests of the United States.

What happens if the taxpayer owes a shared responsibility payment (SRP)? The SRP amount that you owe is the assessed payment for not having minimum essential health coverage for you and, if applicable, your dependents per section 5000A. The SRP isn't assessed for months beginning after December 31, 2018. However, even after that date, you may continue to owe the SRP assessed for months that began before December 31, 2018. The SRP amount that you owe isn't subject to penalties or to Notice of Federal Tax Lien (NFTL) or levy enforcement actions. However, interest will continue to accrue until you pay the total SRP balance due. We may apply your federal tax refunds to the SRP amount that you owe until it's paid in full.

Payment methods. You can make your payments by direct debit, check or money order, credit card, debit card, or one of the other accepted payment methods. To be charged a lower fee, you may want to set up an OPA and/or agree to make your payments by direct debit. For more information on the accepted payment methods, go to [IRS.gov/Payments](#), see your tax return instructions, or call 800-829-1040.

Requests to modify or terminate an installment agreement. After an installment agreement is approved, you may submit a request to modify or terminate your installment agreement. You may modify your payment amount or due date by going to [IRS.gov/OPA](#). You may also call 800-829-1040 to modify or terminate your agreement.

Generally, the fee is \$89 to modify your installment agreement (\$43 if you are a low-income taxpayer). However, the user fee is \$10 for installment agreements reinstated or restructured through an OPA. This user fee applies only if the reinstatement or restructuring of the installment agreement is completed through an OPA.

The IRS will waive or reimburse the fee for low-income taxpayers if certain conditions are met. See [Low-income taxpayer user fee waivers and reimbursements](#), earlier.

By approving your request, we agree to let you pay the tax you owe in monthly installments instead of immediately paying the amount in full. In return, you agree to make your monthly payments on time. You agree to provide updated financial information when requested.

You also agree to meet all your future tax obligations. This means that you must have enough withholding or estimated tax payments so that your tax obligation for future years is paid in full when payment is due. And you agree to timely file your return.

What happens if the taxpayer doesn't comply with the terms of the installment agreement? If you don't make your payments on time or don't timely pay a balance due on a return you file later, you will be in default on your agreement and we may terminate the agreement. Before we terminate the agreement, you may be entitled to file an appeal under the Collection Appeals Program (CAP). We may take enforcement actions, such as filing an NFTL or issuing an IRS levy, to collect the entire amount you owe. To ensure that your payments are made timely, you should consider making them by direct debit. See [Lines 13a, 13b, and 13c](#), later.



An installment agreement may be terminated if you provide materially incomplete or inaccurate information in response to an IRS request for a financial update or if you provide such information to obtain the installment agreement. For more information about what you need to do if your installment agreement is terminated, go to [IRS.gov/CP523](#).

Note. We may have filed an NFTL against your property. If so, you may be able to get the notice of lien withdrawn. To learn more about lien withdrawals and to see if you qualify, go to [IRS.gov/businesses/small-businesses-self-employed/understanding-a-federal-tax-lien](#).



An NFTL may be filed to protect the government's interests until you pay in full. However, an NFTL generally isn't filed with a guaranteed installment agreement or streamlined installment agreement, but can be in certain situations. We won't file an NFTL for the individual shared responsibility payment under the Affordable Care Act.

You may be entitled to file an appeal through the CAP before and after the NFTL is filed. You are entitled to file an appeal regarding an NFTL filing through Collection Due Process (CDP) only for the first filing of an NFTL for the unpaid tax liabilities shown on that NFTL.

IRS collection process and taxpayer rights. For additional information on the IRS collection process and what to do if you cannot pay your taxes in full, see Pub. 594, The IRS Collection Process. You can find more information about the collection process, taxpayer rights, and appealing a collection decision at [IRS.gov/businesses/small-businesses-self-employed/collection-procedures-for-taxpayers-filing-and-or-paying-late](https://www.irs.gov/businesses/small-businesses-self-employed/collection-procedures-for-taxpayers-filing-and-or-paying-late).

Taxpayer Advocate Service (TAS). TAS is an independent organization within the IRS that helps taxpayers and protects taxpayer rights. TAS strives to ensure that every taxpayer is treated fairly and that you know and understand your rights under the Taxpayer Bill of Rights. TAS can help you if your tax problem is causing a financial difficulty; you've tried and been unable to resolve your issue with the IRS; or you believe an IRS system, process, or procedure isn't working as it should. The service is free. Your local advocate's number is at [TaxpayerAdvocate.IRS.gov/Contact-Us](https://www.irs.gov/Contact-Us) and in your local directory. You can also call TAS toll free at 877-777-4778. For more information about TAS and your rights under the Taxpayer Bill of Rights, go to [TaxpayerAdvocate.IRS.gov](https://www.irs.gov/TaxpayerAdvocate).

Where To File

Attach Form 9465 to the front of your return and send it to the address shown in your tax return booklet. If you have already filed your return or you're filing this form in response to a notice, file Form 9465 by itself with the Internal Revenue Service Center using the address in the table below that applies to you.

For all taxpayers except those filing Form 1040 or 1040-SR with Schedule(s) C, E, or F for any tax year for which this installment agreement is being requested

IF you live in . . .	THEN use this address . . .
Alaska, Arizona, Colorado, Connecticut, Delaware, District of Columbia, Hawaii, Idaho, Illinois, Maine, Maryland, Massachusetts, Montana, Nevada, New Hampshire, New Jersey, New Mexico, North Dakota, Oregon, Rhode Island, South Dakota, Tennessee, Utah, Vermont, Washington, Wisconsin, Wyoming	Department of the Treasury Internal Revenue Service 310 Lowell St. Stop 830 Andover, MA 01810
Alabama, Florida, Georgia, Kentucky, Louisiana, Mississippi, North Carolina, South Carolina, Texas, Virginia	Department of the Treasury Internal Revenue Service P.O. Box 47421 Stop 74 Doraville, GA 30362
Arkansas, California, Indiana, Iowa, Kansas, Michigan, Minnesota, Missouri, Nebraska, New York, Ohio, Oklahoma, Pennsylvania, West Virginia	Department of the Treasury Internal Revenue Service Stop P-4 5000 Kansas City, MO 64999-0250

For taxpayers filing Form 1040 or 1040-SR with Schedule(s) C, E, or F for any tax year for which this installment agreement is being requested

IF you live in . . .	THEN use this address . . .
Connecticut, Maine, Massachusetts, New Hampshire, New York, Rhode Island, Vermont	Department of the Treasury Internal Revenue Service P.O. Box 480 Stop 660 Holtsville, NY 11742-0480
Alabama, Arkansas, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Nebraska, New Jersey, North Dakota, Ohio, Oklahoma, Pennsylvania, South Dakota, Tennessee, Texas, West Virginia, Wisconsin	Department of the Treasury Internal Revenue Service P.O. Box 69 Stop 811 Memphis, TN 38101-0069
Alaska, Arizona, California, Colorado, Hawaii, Idaho, Montana, Nevada, New Mexico, Oregon, Utah, Washington, Wyoming	Department of the Treasury Internal Revenue Service P.O. Box 9941 Stop 5500 Ogden, UT 84409
District of Columbia, Delaware, Florida, Maryland, North Carolina, South Carolina, Virginia	Department of the Treasury Internal Revenue Service Stop 4-N31.142 Philadelphia, PA 19255-0030

For all taxpayers living outside the 50 states, for any tax year for which the installment agreement is being requested

IF you live in . . .	THEN use this address . . .
A foreign country, U.S. territory*, or use an APO or FPO address, or file Form 2555 or 4563, or are a dual-status alien	Department of the Treasury Internal Revenue Service 3651 South I-H 35 5501AUSC Austin, TX 78741

* For all taxpayers who are bona fide residents of American Samoa, Puerto Rico, Guam, the U.S. Virgin Islands, or the Northern Mariana Islands, see Pub. 570, Tax Guide for Individuals With Income From U.S. Territories.

Specific Instructions

Part I

Line 1a

If you're making this request for a joint tax return, show the names and social security numbers (SSNs) in the same order as they appear on your tax return.

If you have a foreign address, enter the city name on the appropriate line. Don't enter any other information on that line, but also complete the spaces below that line. Don't abbreviate the country name. Follow the country's practice for entering the postal code and the name of the province, county, or state.

Line 1b

If the address you provided on line 1a is new since you filed your last tax return, check the box on line 1b.

Line 2

Show the name and employer identification number (EIN) of your business (which must no longer be operating).

Line 5

Enter the total amount you owe as shown on your tax return(s) or notice(s). The amount you owe could include amounts from more than 1 tax year.

Line 6

If you have additional balances due that are not reflected on line 5, list the total here (even if they are included in an existing installment agreement). Any adjustments or other charges that are not reported on a tax return or notice should be listed on this line.

Line 7

Add lines 5 and 6 and enter the result.

Line 8

Even if you can't pay the full amount you owe now, you should pay as much as possible to limit the penalty and interest charges. If you're filing this form with your tax return, make the payment with your return. For details on how to pay, see your tax return instructions.

If you're filing this form by itself, such as in response to a notice, attach a check or money order made payable to

"United States Treasury." Don't send cash. Be sure to include the following.

- Your name, address, SSN/EIN, and daytime phone number.
- The tax year and tax return (for example, "2023 Form 1040") for which you're making this request.

Line 9

Subtract line 8 from line 7 and enter the result.



Generally, to qualify for a streamlined installment agreement, if the total amount you owe is greater than \$25,000 but not more than \$50,000, you must either (1) complete lines 13a and 13b and agree to make payments by direct debit; or (2) check box 14 to make your payments by payroll deduction and attach a completed, signed Form 2159.



If the total amount you owe isn't more than \$50,000 (including any amounts you owe from prior years), you don't need to file Form 9465; you can request an installment agreement online. For more information, see [Applying online for an installment agreement and other payment plans](#), earlier.

Line 11a

Enter on line 11a the amount you can pay each month. Make your payments as large as possible to limit interest and penalty charges. The charges will continue to accrue until you pay them in full. If you have an existing installment agreement, this amount should represent your **total** proposed monthly payment amount for all your liabilities. If no payment amount is listed on line 11a (or 11b), a payment will be determined for you by dividing the balance due by 72 months. If the proposed payment amount entered does not pay in full the amount of tax owed by the CSED, your request may be considered for a PPIA. See [Partial payment installment agreement](#), earlier, for more information.

After we review your completed form, we may contact you for additional information. For example, we may request a Form 433-F to be completed.

Line 11b

Follow the steps in the bullet below that applies to you.

- If the amount on line 11a is less than the amount on line 10 and you're able to increase your payment to an amount that is equal to or greater than the amount on line 10, enter your revised monthly payment proposal on line 11b.
- If the amount on line 11a is less than the amount on line 10 and you're unable to increase your payment to the amount on line 10, check the box below the line 11b entry line and complete and attach Form 433-F.
- If the amount on line 11a (or 11b, if applicable) is equal to or greater than the amount on line 10 but the amount you owe (line 9) is greater than \$25,000 but not more than \$50,000, you must complete either line 13 or 14 if you don't want to complete Form 433-F.
- If you have defaulted on an installment agreement within the last 12 months, the amount you owe is greater than \$25,000 but not more than \$50,000, and the amount

on line 11a (11b, if applicable) is less than the amount on line 10, you must complete Part II on page 2 of Form 9465.

- If the amount on line 9 is greater than \$50,000, complete and attach Form 433-F.

Line 12

You can choose the day of each month your payment is due. This can be on or after the 1st of the month, but no later than the 28th of the month. For example, if your rent or mortgage payment is due on the 1st of the month, you may want to make your installment payments on the 15th. When we approve your request, we will tell you the month and day that your first payment is due.

If we haven't replied by the date you chose for your first payment, you can send the first payment to the Internal Revenue Service Center at the address shown earlier that applies to you. See [Line 8](#), earlier, for details on what to write on your payment. Or you can submit this payment electronically. Go to [IRS.gov/Payments](https://www.irs.gov/Payments) for payment options.

Lines 13a, 13b, and 13c

To pay by direct debit from your checking account at a bank or other financial institution (such as a mutual fund, brokerage firm, or credit union), fill in lines 13a and 13b. Check with your financial institution to make sure that a direct debit is allowed and to get the correct routing and account numbers.



Making your payments by direct debit will help ensure that your payments are made timely and you don't default on this installment agreement.

Low-income taxpayers who complete lines 13a and 13b will receive a waiver of their installment agreement user fees. See [Low-income taxpayer user fee waivers and reimbursements](#), earlier, for more information.

Line 13a. The routing number must be nine digits. The first two digits of the routing number must be 01 through 12 or 21 through 32. Use a check to verify the routing number. On the [Sample Check](#), later, the routing number is 250250025. But, if your check is payable through a financial institution different from the one at which you have your checking account, don't use the routing number on that check. Instead, contact your financial institution for the correct routing number.

Line 13b. The account number can be up to 17 characters (both numbers and letters). Include hyphens but omit spaces and special symbols. Enter the number from left to right and leave any unused boxes blank. On the [Sample Check](#), later, the account number is 20202086. Don't include the check number.



The direct debit from your checking account won't be approved unless you (and your spouse if filing a joint return) sign Form 9465.

Sample Check—Lines 13a and 13b



The routing and account numbers may be in different places on your check.

Line 13c. Low-income taxpayers who are unable to make electronic payments through a DDIA by providing their information on lines 13a and 13b are eligible to receive reimbursement of their installment agreement user fees. If you're a low-income taxpayer and you checked the box on line 13c, your installment agreement user fee will be reimbursed upon completion of your installment agreement. See [Low-income taxpayer user fee waivers and reimbursements](#), earlier, for more information.

If you don't check the box on line 13c (and don't provide the information on lines 13a and 13b), you're indicating that you're able but choosing not to make electronic payments by establishing a DDIA. As such, your user fee is not eligible for reimbursement upon completion of your installment agreement.

Line 14

If you want to make your payments by payroll deduction, check the box on line 14 and attach a completed and signed Form 2159. Ask your employer to complete and sign the employer's portion of your Form 2159.

Part II

If you have defaulted on an installment agreement within the last 12 months, the amount you owe is greater than \$25,000 but not more than \$50,000, and the amount on line 11a (line 11b, if applicable) is less than line 10, complete Part II on page 2 of Form 9465.

Lines 21 and 22

Complete lines 21 and 22 relating to income earned by your spouse if you are married and meet either of the following conditions.

- You live with and share household expenses with your spouse. Even if only one spouse is liable for the taxes owed, the total household income and expenses are relevant in determining the liable spouse's ability to pay the taxes owed.
- You live in a community property state. In a community property state, the income of a non-liable spouse may be factored into the other spouse's ability to pay the taxes owed.

You should complete lines 21 and 22 whether your filing status is married filing jointly or married filing separately.

Privacy Act and Paperwork Reduction Act Notice.

Our legal right to ask for the information on this form is sections 6001, 6011, 6012(a), 6109, and 6159 and their

regulations. We will use the information to process your request for an installment agreement. The reason we need your name and social security number is to secure proper identification. We require this information to gain access to the tax information in our files and properly respond to your request. You aren't required to request an installment agreement. If you do request an installment agreement, you're required to provide the information requested on this form. Failure to provide this information may prevent processing your request; providing false information may subject you to fines and/or penalties.

You aren't required to provide the information requested on a form that is subject to the Paperwork Reduction Act unless the form displays a valid OMB control number. Books or records relating to a form or its instructions must be retained as long as their contents may become material in the administration of any Internal Revenue law. Generally, tax returns and return information are

confidential, as required by section 6103. However, we may give this information to the Department of Justice for civil and criminal litigation, and to cities, states, the District of Columbia, and U.S. commonwealths and territories to carry out their tax laws. We may also disclose this information to other countries under a tax treaty, to federal and state agencies to enforce federal nontax criminal laws, or to federal law enforcement and intelligence agencies to combat terrorism.

The average time and expenses required to complete and file this form will vary depending on individual circumstances. For the estimated averages, see the instructions for your income tax return.

If you have suggestions for making this form simpler, we would be happy to hear from you. See the instructions for your income tax return.
